

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Giansante	Team: Squad #02	CCRB Case #: 201411322	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/28/2014 5:42 PM	Location of Incident: 173rd Street and Jamaica Avenue	18 Mo. SOL 4/28/2016	Precinct: 103		
Date/Time CV Reported	CV Reported At: Precinct	How CV Reported: Mail	Date/Time Received at CCRB Thu, 11/06/2014 2:02 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			NARCBQN
2. SGT Mark Sinatra	04720	944174	NARCBQN
3. POM Matthew Ambrosino	01211	944323	NARCBQN
4. POM Daniel Ludemann	10721	938892	NARCBQN

Officer(s)	Allegation	Investigator Recommendation
A . SGT Mark Sinatra	Abuse: Sgt. Mark Sinatra stopped § 87(2)(b)	A . Unsubstantiated
B . POM Daniel Ludemann	Abuse: PO Daniel Ludemann stopped § 87(2)(b)	B . Unsubstantiated
C . POM Matthew Ambrosino	Abuse: PO Matthew Ambrosino stopped § 87(2)(b)	C . Unsubstantiated
D . An officer	Abuse: An officer searched § 87(2)(b)	D . Officer(s) Unidentified

Case Summary

On October 28, 2014, § 87(2)(b) filed the following complaint in-person at the 103rd Precinct stationhouse (encl. 1). The CCRB received the complaint on November 6, 2014.

On October 28, 2014, at approximately 5:42 p.m., § 87(2)(b) was standing on the northwest corner of the intersection of Jamaica Avenue and 173rd Street in Queens. A black unmarked vehicle stopped and Sgt. Mark Sinatra, PO Daniel Ludemann, and PO Matthew Ambrosino of Narcotics Borough Queens exited and allegedly surrounded § 87(2)(b) (**Allegations A, B, and C**). One of the officers instructed § 87(2)(b) to take his hands out of his pockets and to provide identification. § 87(2)(b) complied and the same officer allegedly entered § 87(2)(b)'s front pants pockets, removed the objects inside, and then put the objects back (**Allegation D**). The officers returned to their vehicle and drove away.

Mediation, Civil, and Criminal Histories

§ 87(2)(b) accepted mediation. § 87(2)(g)

On March 10, 2015, the investigator requested a copy of any Notice of Claim regarding the incident filed with the City of New York (encl. 12). A response has not been received as of the date of this report. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(g)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (encl. 0d).
- Sgt. Sinatra has been a member of the NYPD for eight years and has eight previous CCRB allegations involving four cases with no substantiated allegations (encl. 0a).
- PO Ludemann has been a member of the NYPD for nine years and has nine previous CCRB allegations involving three cases with no substantiated allegations (encl. 0b).
- PO Ambrosino has been a member of the NYPD for seven years and has five previous CCRB allegations involving four cases with no substantiated allegations (encl. 0c).

Findings and Recommendations

Explanation of Subject Officer Identification

Sgt. Sinatra and PO Ludemann denied having any recollection of stopping anyone at the incident location at the time and date of occurrence (encl. 4e; 5e). PO Ambrosino § 87(2)(b) was not interviewed. § 87(2)(b) reported seeing the number "§ 87(2)(b)" on the license plate of the officers' vehicle, which he described as a black van. The Narcotics tactical plan shows that Sgt. Sinatra, PO Ludemann, and PO Ambrosino worked in a black Subaru with vehicle number § 87(2)(b) (encl. 6). PO Ludemann described the vehicle as an SUV. Both he and Sgt. Sinatra confirmed that the vehicle's license plate would have the number "§ 87(2)(b)" on it. § 87(2)(b) described the officers as white men and Sgt. Sinatra, PO Ludemann, and PO Ambrosino are all white men. In addition, the description of the encounter generally resembles one in which Narcotics officer would participate. § 87(2)(g)

§ 87(2)(b) stated that the officer who searched his pockets was the front passenger in the unmarked vehicle. Neither Sgt. Sinatra nor PO Ludemann marked in his memo book who was the operator that day (encl. 4b; 5b) and Sgt. Sinatra could not recall it at his interview. § 87(2)(g)

In his telephone statement, he described one as a muscular man in his 40s who was 6' tall, another as a muscular man in his 40s who was 5'7" tall, and the last as a

muscular man in his 50s who was 5'9" tall (encl. 3a). In his CCRB interview, he described the officer who searched him as a muscular man in his 30s who was 6' tall (encl. 3c-3d). He described the operator as a muscular man who was at least 6' tall and who was younger than the officer who searched him. He described the back passenger as a muscular man who was older than the officer who searched him. He variously described this final officer as being both 5'11" tall and as the tallest officer present. All three subject officers are 5'10"-6'1" tall (encl. 8a-8c).

§ 87(2)(g)

§ 87(2)(b) stated that he would be able to recognize photographs of the officers, but he did not respond to multiple attempts to contact him to arrange a photo-viewing. § 87(2)(g)

Recommendations

- **Allegation A—Abuse of Authority: Sgt. Mark Sinatra stopped** § 87(2)(b)
- **Allegation B—Abuse of Authority: PO Daniel Ludemann stopped** § 87(2)(b)
- **Allegation C—Abuse of Authority: PO Matthew Ambrosino stopped** § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Sinatra, PO Ludemann, and PO Ambrosino exited their vehicle and surrounded him, and that one of them instructed him to remove his hands from his pockets and to produce his identification. Sgt. Sinatra and PO Ludemann had no recollection of participating in such an incident, and PO Ambrosino was not interviewed. § 87(2)(g)

Therefore it is recommended that **Allegations A, B, and C** be closed as **unsubstantiated**.

- **Allegation D—Abuse of Authority: An officer searched** § 87(2)(b)

§ 87(2)(g). Therefore it is recommended that **Allegation D** be closed as **officer(s) unidentified**.

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Investigator: _____ Daniel Giansante _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date